

Jaswant Nagar Cold Storage Pvt Ltd v. Appellate Authority Additional Commissioner

High Court of Judicature at Allahabad · Single Judge · 1 May 2024; 16 July 2024 · WRIT-C No. 14444 of 2024 · **Writ listed; realisation of assessment dues stayed pending hearing.**

HEADNOTE

On a cold-storage consumer's writ against a s.126 demand and a Clause 6.8 appeal order, the Allahabad High Court held that the matter required consideration, listed it for counter, and stayed realisation of dues under the 4.5.2021 demand and 7.3.2024 appellate order. The stay was later extended till further orders. Merits were not decided.

FACTUAL SUMMARY

A cold-storage company challenged the Assessing Officer's 4.5.2021 demand as issued without s.126(1) of the Electricity Act, 2003 and Clause 6.8(c)(i) of the U.P. Electricity Supply Code, 2005, and the 7.3.2024 appellate order as passed perfunctorily without Clause 6.8(d)(v). It had deposited 50% of the demanded dues when filing the appeal. The High Court listed the writ for counter and stayed realisation of the two orders; on the adjourned date, no counter having been filed, the stay was extended.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

listing-and-interim-stay-of-assessment-dues

HOLDING

The writ challenging the Assessing Officer's 4.5.2021 demand (alleged non-compliance with s.126(1) EA 2003 and Clause 6.8(c)(i)) and the 7.3.2024 appellate order (alleged non-compliance with Clause 6.8(d)(v)) was held to require consideration. Realisation of electricity dues under those orders was stayed till the next listing and later extended till further orders. Merits were not decided. ¶ 2-5

PRINCIPLE TAGS

opportunity-before-final-assessment On a cold-storage consumer's writ against a s.126 demand and a Clause 6.8 appeal order, the Allahabad High Court held that the matter required consideration, listed it for counter, and stayed realisation of dues under the 4.5.2021 demand and 7.3.2024 appellate order. The stay was later extended till further orders.. ¶ 2-5

s126-procedural-strictness-notice-and-hearing On a cold-storage consumer's writ against a s.126 demand and a Clause 6.8 appeal order, the Allahabad High Court held that the matter required consideration, listed it for counter, and stayed realisation of dues under the 4.5.2021 demand and 7.3.2024 appellate order. The stay was later extended till further orders.. ¶ 2-5

procedural-listing-no-construction On a cold-storage consumer's writ against a s.126 demand and a Clause 6.8 appeal order, the Allahabad High Court held that the matter required consideration, listed it for counter, and stayed realisation of dues under the 4.5.2021 demand and 7.3.2024 appellate order. The stay was later extended till further orders.. ¶ 2-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 4.5.2021 DEMAND COMPLIED WITH S.126(1) OF THE ELECTRICITY ACT, 2003 AND CLAUSE 6.8(C)(I) OF THE SUPPLY CODE, 2005

Only the petitioner's submission was recorded; no merits finding. ¶ 1

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.